

EDM 101 – Ethics and Patients' Rights in Dental Medicine

Lecture 7

Legal Regulation in Dentistry (National and International)

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This classes learning outcomes

By the end of this lecture you are able to

- Explain why dentistry is regulated by law.
- Identify the legal responsibilities of dentists in clinical practice.
- Compare national and international systems that regulate dentistry.



Why Is Dentistry Regulated?

- A. Protect patient safety
- B. Ensure qualified professionals provide treatment
- C. Maintain professional standards
- D. Prevent malpractice and negligence



What Do Legal Regulations Define?

- A. Who is allowed to practice dentistry
- B. Required qualifications and licensing
- C. Standards of care
- D. Professional responsibilities
- E. Penalties for misconduct or malpractice



Importance of Legal Regulation

- A. Protect patients' rights
- B. Maintain public trust in dentistry
- C. Ensure ethical practice
- D. Provide accountability for professional misconduct



Standards of Care

Two approaches are used to evaluate dental treatment:

National Standard of Care

Dentists are judged according to national professional standards.

Locality Rule

Dentists are evaluated according to standards in their local community.

These standards help determine whether treatment was appropriate.



Authorities That Regulate Dentistry

Examples of national regulatory authorities include:

1. Ministry of Health
2. Dental Councils
3. National Dental Associations

These institutions regulate licensing and professional conduct.



Legal Responsibilities of Dentists

- A. Obtain informed consent
- B. Maintain accurate patient records
- C. Follow infection control standards
- D. Avoid negligence or malpractice
- E. Protect patient confidentiality

Failure to follow these duties can lead to legal action.



Common Legal Issues in Dentistry

- Misdiagnosis or treatment error
- Lack of informed consent
- Breach of confidentiality
- Failure to refer complex cases
- False advertising or unlicensed practice



International Regulation of Dentistry

Several international organizations help establish global standards:

- WHO – promotes global oral health policies
- FDI World Dental Federation – develops ethical guidelines
- International dental organizations – encourage professional standards

These organizations support consistent dental education and practice worldwide.



National vs International Regulation

Aspect	National Regulation	International Regulation
Authority	Government or dental council	Global organizations
Scope	Country-specific	Worldwide standards
Purpose	Control dental practice	Promote global quality



Cultural Practices and Dental Ethics

Some cultures historically practiced:

- A. Grinding front teeth for aesthetics
- B. Removing certain teeth for cultural identity

These practices illustrate how cultural traditions may conflict with modern dental ethics.



Acceptable Tooth Extraction

Extraction of healthy teeth may be justified only in certain situations, such as:

- A. Orthodontic treatment
- B. Correcting severe malocclusion

Such treatment must follow professional standards of care.



Regulation of Dentistry in Kurdistan Region

- A. Dentistry is regulated by the Kurdistan Dental Association (KDA)
- B. The Dentists Syndicate Law (2004) governs practice
- C. Dentists must be members of the KDA to practice legally

These laws establish professional guidelines and ethical codes.



Regulation in Iraq

In the rest of Iraq, dentistry is regulated by:

Iraq Dental Association

The association oversees licensing and professional regulation.



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Regulation in the United States

Dental practice in the United States is regulated by:

- American Dental Association (ADA)
- Commission on Dental Accreditation (CODA)
- Regional dental licensing boards

These organizations oversee education and professional standards.



Regulation in Canada

In Canada, dentistry is regulated by:

- National Dental Examining Board of Canada (NDEB)
- Commission on Dental Accreditation of Canada
- Royal College of Dentists of Canada

These institutions regulate training, certification, and professional standards.



Key Points:

- Dentistry is regulated by law to protect patients.
- Dentists must follow legal and ethical standards.
- National and international organizations guide dental practice.



Thank You!



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